

Education Agent Management Policy

The Institute of International Studies Pty Ltd
Sydney Campus: 13-15 Smail St, Ultimo NSW 2007
Melbourne Campus: Level 1, 112 Newquay Promenade, Docklands, VIC 3008
Tel: (+61 2) 8098 0702 | Email: info@tiis.edu.au

Version No: 2.0

Content

S

1. Purpose....2
2. Scope and Governing Principles....2
3. Regulatory framework and 2025–2026 changes....2
6. Mandatory written agent agreement....3
7. PRISMS and agent identity records....3
8. Agent conduct and student protection....3
9. Transfers and recruitment commission controls....3
10. Commission records and statutory data requests....4
11. Agent communication, induction and training....4
12. Monitoring, annual review and audit....4
13. Breaches, immediate action and termination....4
14. Complaints, whistleblowing and conflicts....5
15. Records and privacy....5
16. Implementation, assurance and review....5
17. Document Management....5
18. Version History....5

Appendix A – Minimum operational control register....7

Appendix B – Sources and legislative verification....8

1. Purpose

To establish accountable, risk-based controls for selecting, appointing, contracting, training, monitoring, paying, correcting and terminating education agents representing TIIS. The policy protects students, supports genuine recruitment and demonstrates compliance with the Education Services for Overseas Students Act 2000 (ESOS Act), the current National Code 2018 and applicable amendments.

2. Scope and Governing Principles

Apply to all TIIS staff, education agents, relevant employees and subcontractors, and onshore and offshore recruitment of intending or accepted overseas students. An education agent relationship does not transfer TIIS's regulatory accountability. TIIS must not use agents known or reasonably suspected to engage in prohibited or dishonest practices. Agents must act honestly, in good faith and in students' best interests, avoid conflicts and protect confidentiality.
This policy is to be read with TIIS Admissions, Student Transfer, Marketing and Advertising, Privacy, Complaints, Risk and Financial policies, the current Education Agent Agreement and PRISMS operating instructions. Current legislation prevails over inconsistent policy wording.

3. Regulatory framework and 2025–2026 changes

- ESOS Act 2000 (as amended): agent/commission definitions, transparency and any statutory request for agent commission data, including section 21B; provider integrity and registration obligations.
- National Code 2018: Standard 4 (agents); Standard 1 (marketing); Standard 2 (pre-enrolment); Standard 3 (written agreements); Standard 7 (student transfers); and applicable commission restrictions.
- 2026 commission restriction: no commission or other covered benefit for recruitment of a student transferring after commencing study onshore with another provider, subject to applicable statutory exceptions, including acceptance for enrolment on or before 31 March 2026.
- 2 October 2026 amendment: for relevant non-school students, the transfer restriction period is temporarily 12 months until 30 June 2027; it reverts to six months from 1 July 2027 unless amended again. TIIS must check the law in force when processing each transfer.
- Australian Consumer Law, Privacy Act 1988, relevant migration-advice restrictions and applicable government reporting directions.
-

4. Governance and accountabilities

Board of Directors: Oversees recruitment risk appetite, significant compliance issues and aggregated agent performance through institutional reporting.
CEO: Approves appointments, renewals, suspensions and terminations; ensures resources, lawful commission controls and escalation of material breaches.
Marketing Manager: Owns due diligence, agent agreements, onboarding, approved materials, performance reviews, agent register, agent-related PRISMS maintenance and corrective action coordination.
Registrar / Admissions: Verifies genuine applications and student histories, records the recruiting agent, applies transfer restrictions and identifies suspicious documents or referral patterns.
Finance: Checks eligibility for commission before payment, verifies invoices and non-cash benefits, maintains transaction-level data and responds to authorised commission data requests.
Quality and Compliance Manager: Provides independent second-line review of ESOS compliance,

agent audits, exception controls and material incident escalation.

5. Agent selection, due diligence and approval

Before appointment, Marketing documents identity, registration and ownership, contact details, relevant operating locations, previous provider relationships, recruitment experience, references, regulatory and misconduct concerns, subcontracting arrangements, conflicts, capacity to provide correct advice, and knowledge of Australian international education. Higher-risk agents require enhanced checks. CEO approval and a signed agreement are mandatory before representation or recruitment.

Marketing maintains an agent risk rating (low/medium/high), rationale, approval date, contract expiry, training completion and responsible relationship manager. The appointment is not automatic merely because an agent previously referred students.

6. Mandatory written agent agreement

Every agreement must expressly address National Code Standard 4.2: TIIS's continuing ESOS responsibility; agent duties under Standard 4.3; monitoring and accurate information; immediate corrective action; mandatory termination provisions; and permitted disclosure of agent information to government agencies. It must additionally include: approved territory and channels; use of TIIS branding; authorised subcontractors; conflict declarations; access to audit records; student privacy; commission eligibility, the onshore transfer prohibition, data/reporting obligations, suspension, termination, repayment and dispute processes.

TIIS must update existing agreements or issue legally effective addenda where necessary to implement new commission and data requirements. No contractual provision overrides a statutory prohibition.

7. PRISMS and agent identity records

Marketing maintains current agent details in PRISMS as required by Standard 4.1, and an internal master register reconciled against signed agreements. Admissions records the actual agent involved in each application, including where a different person or subcontractor assists. Material changes, suspension and termination are updated within applicable PRISMS requirements. Periodic reconciliation identifies duplicate, inactive, expired or unapproved agent records.

8. Agent conduct and student protection

Agents must disclose and take reasonable steps to avoid conflicts, be transparent about fees and commissions where required, use approved and current TIIS information, provide genuine applicant documentation, avoid coercive transfers, not promise visa, migration or employment outcomes, and refrain from migration advice unless authorised. TIIS will not accept applicants from agents it knows or reasonably suspects to engage in conduct prohibited by Standard 4.6.

9. Transfers and recruitment commission controls

Admissions must establish whether an applicant has commenced a course onshore with another registered provider and whether the proposed enrolment constitutes a transfer rather than further study after completing a principal course or a progression within the original visa package. It must assess the current Standard 7 transfer restrictions and any valid exceptions separately from commission eligibility. A lawful transfer is not necessarily commissionable.

Before any commission or other benefit is approved, Finance must obtain a documented eligibility clearance based on: student identity; previous provider/course and commencement; current and proposed course; transfer status; TIIS acceptance-for-enrolment date; applicable exception; agent identity; agreement; and value/type of consideration. Where the ban applies, no monetary or non-monetary commission or recruitment-related benefit may be provided. Ambiguous cases must be held for Compliance review and, if needed, legal advice.

The exception for students accepted for enrolment by the relevant provider on or before 31 March 2026 must be evidenced; an agent contract date alone is insufficient. Finance must prevent indirect circumvention through rebates, marketing fees, gifts, bonuses, free services or other arrangements that amount to covered consideration.

10. Commission records and statutory data requests

Finance maintains a reconciled commission ledger covering agent identity, student/accepted-student linkage, payment or non-cash benefit, amount/value, payment date, service period, basis of calculation, course/provider history and eligibility decision. TIIS must be able to respond accurately and on time to a lawful request for commission information under ESOS Act section 21B and applicable government instructions. CEO authorises formal responses, with Finance preparation and Compliance validation.

11. Agent communication, induction and training

Before active recruitment, agents receive approved course and admissions information, the ESOS/National Code obligations, the Agent Code of Ethics, student transfer restrictions, the commission ban, misleading-recruitment prohibitions, privacy requirements and reporting channels. TIIS records attendance, dates, materials and understanding checks. Material regulatory changes must be communicated promptly and acknowledgement sought from active agents.

12. Monitoring, annual review and audit

Marketing conducts documented annual reviews of all active agents and enhanced monitoring of high-risk agents. Metrics include applications, offers, commencements, conversion, refusals, suspicious documents, transfer patterns, student complaints, retention/progression, agent website/social-media accuracy, training completion and corrective-action history. Low activity alone is a commercial issue, not proof of misconduct. Findings must be evidence-based, recorded and risk-rated.

Quality and Compliance undertakes sample-based independent assurance, including checking commission clearances against payments and transfer histories. Significant trends are reported to CEO and governance bodies through established reporting channels.

13. Breaches, immediate action and termination

On becoming aware of, or having reason to believe, that an agent or its employee/subcontractor has failed Standard 4.2 or 4.3 obligations, TIIS must take immediate corrective action under Standard 4.4. If false or misleading recruitment practices are involved, TIIS must immediately terminate its relationship with the agent or require the agent to terminate its relationship with the responsible employee/subcontractor, consistent with Standard 4.5. Ordinary notice-and-response steps must not delay mandatory immediate action.

For inactivity, underperformance or other matters not requiring immediate statutory action, the CEO may use the existing Notice of Intention to Terminate (NOIT) process, ordinarily allowing five working days for response. Marketing documents allegations, evidence, decision, corrective actions, student impact, PRISMS updates and any referral or notification. A substantiated serious breach may justify immediate suspension pending investigation where lawful.

14. Complaints, whistleblowing and conflicts

Students and staff may report agent misconduct directly to TIIS without using the agent. TIIS records, investigates and resolves complaints without retaliation. Conflicts must be declared at appointment, renewed annually and updated when circumstances change; commission decisions involving a conflicted employee must be escalated to an independent approver.

15. Records and privacy

TIIS retains signed agreements, due diligence, agent registers, training, communications, student referral attribution, transfer and commission eligibility checks, invoices, payments, performance reviews, audits, complaints, NOITs and termination records securely. The existing TIIS minimum seven-year retention rule applies unless a longer legal or records schedule period is required. Access is role-based and information is disclosed only where authorised or required by law.

16. Implementation, assurance and review

Within 30 days of approval, Marketing, Admissions and Finance must reconcile active agents and agreements, confirm Standard 7 transfer screening, implement a mandatory pre-payment commission clearance, establish the section 21B data fields, update training, and report outstanding issues to CEO. Compliance verifies completion and samples controls within 60 days. The policy is reviewed at least annually for legislative changes and comprehensively within two years.

17. Document Management

Policy owner	Marketing Manager
Executive accountable	Chief Executive Officer
Independent assurance	Quality and Compliance Manager
Approval authority	Executive Management Team (consistent with existing policy); Board oversight
Status	DRAFT – not approved
Review	Annual regulatory check; full review within two years or sooner on legislative change
Replaces	Education Agent Management Policy and Procedure v1.2, approved 29 May 2026 (subject to approval)

18. Version History

Version	Date	Summary	Approval
1.2	29 May 2026	Education Agent Management Policy and Procedure	Approved
2.0	October 2026	Comprehensive redevelopment of policy	Minor Adjustment –

		and procedure, including strengthened governance, agent controls, digital/AI marketing, approval matrix, monitoring, records and self-assurance. This document reflects official government guidance available on 6 October 2026.	no reapproval required.

**********END OF POLICY and PROCEDURE*********

Appendix A – Minimum operational control register

Control	Owner	Evidence
Appointment and due diligence	Marketing / CEO	Due diligence checklist, risk rating, signed approval
Agreement and Standard 4 clauses	Marketing	Signed agreement and current addendum
PRISMS reconciliation	Marketing / Admissions	Agent register, PRISMS check
Transfer screening	Admissions	Prior-study check and transfer decision
Commission eligibility	Finance	Clearance and exception evidence before payment
Commission data reporting	Finance / CEO	Ledger, reconciliation, submitted response
Annual review	Marketing	Agent scorecard, actions and sign-off
Independent assurance	Compliance	Sample testing and findings
Immediate breach action	CEO / Marketing	Incident record, corrective action/termination

Appendix B – Sources and legislative verification

- ESOS Act 2000 (current compilation): https://www.legislation.gov.au/C2004A00757/latest/text
- National Code 2018 (current compilation): https://www.legislation.gov.au/F2017L01182/latest/text
- Department of Education – Changes to the legislative framework for overseas students: https://www.education.gov.au/esos-framework/changes-legislative-framework-overseas-students
- Department of Education – Onshore transfer commission ban factsheet: https://www.education.gov.au/esos-framework/resources/ban-payment-agent-commissions-onshore-transfers
- Department of Education – ESOS resources, agent commission data collection: https://www.education.gov.au/resources/esos-framework